

1 ENGROSSED SENATE
2 BILL NO. 2095

By: Kern of the Senate

3 and

4 Townley of the House

5
6 An Act relating to game and fish; defining terms;
7 prohibiting residents and nonresidents from the
8 taking of certain game for compensation without
9 certain licenses; specifying requirements for certain
10 licenses; setting fees for certain licenses; creating
11 misdemeanor offense; requiring certain license
12 revocation upon conviction; requiring court to
13 transmit certain information; defining term;
14 providing exceptions; providing penalties; providing
15 for codification; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 5-202.2 of Title 29, unless
19 there is created a duplication in numbering, reads as follows:

20 A. As used in this section:

21 1. "Guide" means a person who is compensated by a licensed
22 outfitter to help the outfitter furnish personal services for the
23 conduct of waterfowl or crane hunting activities directly related to
24 the conduct of activities for which the employing outfitter is
licensed; and

2. "Outfitter" means a person who holds his or her business
operation out to the public for hire or consideration; provides

1 facilities or services for consideration; maintains, leases, or
2 otherwise provides compensation for the use of land and receives
3 compensation from a third party for use of such land; or uses
4 equipment or accommodations for consideration for the conduct of
5 waterfowl or crane hunting activities.

6 B. Except as otherwise provided in the Oklahoma Wildlife
7 Conservation Code, no person shall assist, accompany, transport,
8 guide, outfit, or aid persons in the taking of waterfowl or crane
9 for compensation or other consideration in this state without first
10 procuring a hunting outfitter or hunting guide license from the
11 Director of Wildlife Conservation or from any authorizing agent of
12 the Department of Wildlife Conservation.

13 C. For the purposes of this section, written permission may be
14 written or electronic information containing the name and phone
15 number of the landowner or agricultural lessee and the name of the
16 person who has been granted permission to carry out the activities
17 specified in subsection B of this section.

18 D. 1. The hunting outfitter shall be:

- 19 a. eighteen (18) years of age or older,
- 20 b. able to produce a valid driver license or other proof
21 of identification, age, and residency. Any license
22 provided shall show such data, and shall include the
23 date of issuance, and

1 c. able to produce an insurance policy indicating a
2 personal liability coverage of no less than One
3 Million Dollars (\$1,000,000.00).

4 2. All persons applying for a hunting guide license shall be:

5 a. eighteen (18) years of age or older, and

6 b. able to produce a valid driver license or other proof
7 of identification, age, and residency. Any license
8 provided shall show such data, and shall include the
9 date of issuance.

10 3. The outfitter may employ any assistants as necessary, and
11 any person providing direct oversight of the hunting or assisting
12 with the hunting in the field shall possess a hunting guide license
13 and operate under a licensed outfitter. A licensed outfitter may
14 also provide the direct oversight of the hunting services.

15 E. The licenses provided in this section and the maximum fee
16 for each license shall be:

17 1. Annual hunting outfitter license for a resident not to
18 exceed One Thousand Dollars (\$1,000.00);

19 2. Annual hunting outfitter license for a nonresident not to
20 exceed Two Thousand Dollars (\$2,000.00);

21 3. Annual hunting guide license for assistants or helpers of an
22 outfitter for a resident not to exceed One Hundred Dollars
23 (\$100.00); and
24

1 4. Annual hunting guide license for assistants or helpers of an
2 outfitter for a nonresident not to exceed Two Hundred Dollars
3 (\$200.00).

4 F. The provisions of this section shall not:

5 1. Apply to resident landowners who provide such services on
6 properties they own or hold under an agricultural lease, nor shall
7 they apply to guides who are employees or direct agents acting on
8 behalf of the landowner on property the landowner owns or holds
9 under an agricultural lease;

10 2. Apply to individuals on lands licensed by the Department as
11 a commercial hunting area or lands licensed as a feral hog hunting
12 facility by the Oklahoma Department of Agriculture, Food, and
13 Forestry;

14 3. Exempt a resident or nonresident procuring a hunting guide
15 or outfitter license pursuant to this section from any other hunting
16 licenses as required by law;

17 4. Allow a hunting guide license holder to conduct business on
18 any land publicly owned, managed, or leased by the Department of
19 Wildlife Conservation or the Oklahoma Tourism and Recreation
20 Department; or

21 5. Apply to lessees of rural land who provide such services on
22 properties leased by such individuals as a farming or ranching
23 business pursuant to Section 951 of Title 18 of the Oklahoma
24

1 Statutes or, if they indicated to the landowner or lessor, if the
2 primary use of the leased land is agricultural.

3 G. Any person convicted of violating any provisions of this
4 section shall, upon conviction, be guilty of a misdemeanor
5 punishable by a fine not less than One Thousand Five Hundred Dollars
6 (\$1,500.00) nor more than Two Thousand Dollars (\$2,000.00), by
7 imprisonment in the county jail for thirty (30) days, or by both
8 such fine and imprisonment.

9 H. Any person convicted of a second or subsequent violation of
10 any provisions of this section shall, upon conviction, be guilty of
11 a misdemeanor punishable by a fine not less than One Thousand Five
12 Hundred Dollars (\$1,500.00) nor more than Two Thousand Dollars
13 (\$2,000.00), by imprisonment in the county jail for not less than
14 six (6) months, or by both such fine and imprisonment.

15 I. Any hunting outfitter license or hunting guide license
16 issued to a person by the Department of Wildlife Conservation shall
17 be automatically revoked upon conviction of the person of a
18 violation of subsection B of this section or a violation of Section
19 5-202 of Title 29 of the Oklahoma Statutes. The revocation shall be
20 for a period set by the court of not less than one (1) year nor more
21 than ten (10) years. If the court does not set a period, the
22 revocation shall be for one (1) year from the date the conviction
23 becomes final. During this period of revocation, the Department
24 shall not issue the person a hunting outfitter license or hunting

1 guide license or any other hunting or fishing license. If the court
2 does not set a period, the Department shall not issue the person a
3 license before the first anniversary of the date the conviction
4 becomes final.

5 J. Any hunting outfitter license or hunting guide license of a
6 person convicted of a second or subsequent violation of the
7 provisions of this section shall be automatically revoked. The
8 revocation shall be for a period set by the court of not less than
9 three (3) years nor more than ten (10) years. If the court does not
10 set a period, the revocation shall be for three (3) years from the
11 date the conviction becomes final. During this period of
12 revocation, the Department shall not issue the person a hunting
13 outfitter license or hunting guide license or any other hunting or
14 fishing license. If the court does not set a revocation period, the
15 Department shall not issue the person a license within three (3)
16 years of the conviction of the person pursuant to this section.

17 K. A person who has a license revoked pursuant to this section
18 shall surrender the revoked license to the court, or the court may
19 order the defendant to surrender the license directly to an officer
20 from the Department of Wildlife Conservation present at the hearing.
21 If the license is surrendered to the court, the court shall send the
22 Department the revoked license. The court shall also send the
23 Department a copy of the judgment of conviction. In lieu of sending
24 a paper copy of the documents and information required by this

1 subsection, the court clerk may transmit the conviction information
2 using an electronic method authorized by the Department.

3 L. For purposes of this section, "conviction" shall include a
4 plea of guilty or nolo contendere to an offense or the imposition of
5 deferred adjudication for an offense.

6 M. The Department of Wildlife Conservation shall promulgate any
7 rules necessary to implement the provisions of this section.

8 SECTION 2. This act shall become effective November 1, 2026.

9 Passed the Senate the 11th day of March, 2026.

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11 _____
12 Presiding Officer of the Senate

13 Passed the House of Representatives the ____ day of _____,
14 2026.

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16 _____
17 Presiding Officer of the House
18 of Representatives
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